



AIESEC INDIA

COMPENDIUM

Sub-document

Anti Sexual Harassment

Policy

The subdocument deals with anti sexual harassment policies followed by the entity. It explains case registering and solving procedures, nature of the cases based related to sexual harassment and case solving procedures. It mentions the role and responsibility of the Internal Committee who looks after the cases of this nature.

ANTI SEXUAL HARASSMENT POLICY

A. INTRODUCTION

[Association Internationale des Étudiants en Sciences Économiques et Commerciales registered as Not for profit society under the Societies Registration Act, 1860] (“AIESEC”) believes that everyone must get equal opportunity to work, regardless of race, caste, religion, colour, ancestry, marital status, gender, sexual orientation, age, nationality, ethnic origin or disability. It believes that a safe and conducive work environment that enables all to work without fear of prejudice, gender bias and sexual harassment, where employer and employees respect each other’s integrity and dignity, their privacy, their right to equality and right to opportunity in the workplace, is created. It understands that equality in employment can be seriously impaired when individuals are subjected to discrimination by way of sexual harassment at workplace. Each such incident results not only in the violation of fundamental rights of “Gender Equality” and the “Right to Life and Liberty” under Articles 14, 15 and 21 of the Constitution of India but also in the violation of the victim’s fundamental right under Article 19 (1) (g) “to practice any profession or to carry out any occupation, trade or business”. The fundamental human rights to protection against sexual harassment and the right to work with dignity are also universally recognized by international conventions and instruments such as Convention on the Elimination of all Forms of Discrimination against Women (“CEDAW”), which has been ratified on the 25th June, 1993 by the Government of India. Pursuant to the Constitutional provisions mentioned above and India’s commitment to the objectives of CEDAW, the Indian Parliament has enacted the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act and Rules, 2013 (‘the Law’) with the objective to provide protection against sexual harassment of women at workplace. AIESEC recognizes that the Law has been passed as a measure to provide equal opportunity to work to its women population and grant them equality under the Constitution of India. Thus, the procedure and the mechanism specified in Law has been provided keeping the women population in mind i.e. to prevent instances of sexual harassment of women at workplace and to have a complaints mechanism to address their complaints. However, as AIESEC also recognizes that genders other than women aren’t immune to sexual harassment as well and can experience such behaviours at the workplace.

AIESEC is committed to work and provide support towards provision of a safe and conducive environment at workplace for all its employees, regardless of gender. Additionally, it is committed to create an ethos of acceptance and inclusivity such that individuals regardless of their sexual orientation, sexual preferences, individuals belonging to LGBTQI community, individuals choosing to not be in any of the socially constructed communities and adopting a fluid/non-binary approach feel respected and accepted at the workplace. In light of the above, AIESEC has formulated this policy against sexual harassment at workplace (“Policy”) as per the Law and is also extending the same to other genders as part of its internal policy.

While the law is applicable to women employees only, as a healthy practice and as part of internal policies, AIESEC has extended the benefit of the law to not only its women employees, but also to its other employees who may belong to any gender. Thus, this Policy shall be applicable to all complaints of sexual harassment made by anyone against an employee of AIESEC in the context of work.

1. WHAT IS SEXUAL HARASSMENT?

It is an unwelcome inappropriate behaviour (whether directly or by implication) which includes:

- a) **Physical contact and** advances including touching, deliberately brushing against another person, interference with an individual's normal work movement or assault.
- b) **Demand or requests for sexual favours**, offensive or unwelcome **flirtations**, unwanted sexual advances or propositions, threats or suggestive or insulting sounds.
- c) Making sexually **coloured remarks** including sexual tones including repeated sexual innuendoes, sexual epithets, derogatory slurs, sexually explicit jokes, letters, phone calls, text, e-mails, WhatsApp or through any other electronic communication etc.
- d) Showing pornography such as derogatory or sexually explicit posters, cartoons, photographs, magazines, drawings, or other printed items; suggestive objects, pictures; emails, screen savers; or other electronic communications; graphic commentaries and leering or obscene gestures.
- e) Any other unwelcome visual, verbal, or physical conduct of a sexual nature.

These circumstances, among other circumstances, if it occurs or if it is present in relation to or connected with any act of sexual harassment, may amount to sexual harassment:

- a) When either implicitly or explicitly it becomes a condition of the individuals present or future employment
- b) Implied or explicit promise of preferential treatment in employment
- c) Implied or explicit threat of detrimental treatment in employment.
- d) The harassment has a purpose or effect of unreasonably interfering with the work performance or creating an environment, which is intimidating, hostile or offensive
- e) Humiliating treatment likely to affect health or safety

Sexual Harassment is not specific to any gender or from any specific gender – it could be Male to Female, Female to Male, Male to Male, or Female to Female or male or female to transgender or any other. Everyone must exercise their own good judgment to avoid engaging in conduct that may be perceived by others as Sexual Harassment. In all the above cases, it is not the intention of the person behaving but the impact on the person who is subjected to such behavior that will matter.

2. WHAT IS A WORKPLACE?

"Workplace" shall mean all places where AIESEC's work is carried out. It shall include:

- a) All **offices or other premises** where AIESEC's operations is conducted
- b) All **AIESEC related activities** performed at any other site away from AIESEC's premises
- c) Any **social, business or other functions where the conduct or comments may have an adverse impact on the workplace or workplace relations**
- d) An **alleged act of sexual harassment committed during or outside of office hours using any mode of communication including electronic communication**
- e) Any sexual harassment **on any social networking website during or outside of office hours**
- f) Any place visited by Employee or arising out of or during the course of employment with AIESEC, including transport services provided by AIESEC for undertaking such journey.

3. WHO IS AN EMPLOYEE?

"Employee" means any person employed at AIESEC for any work on regular, temporary, ad hoc or daily wage basis either directly or through an agent, on the rolls of AIESEC including those on deputation, contract, temporary, ad hoc, probationer, trainee, apprentice, part time or working as consultants, whether for remuneration or not, or working on voluntary basis, whether the terms of employment are express or implied.

4. WHO IS A VISITOR / THIRD PARTY?

“Visitor” or “Third Party” includes any person who is visiting the Workplace and is not covered by any of the other categories defined by this Policy. For example, guests coming for interviews, meetings, events, programs or people walking in for meeting existing Employees, etc.

5. HOW ARE CONCERNS RELATED TO SEXUAL HARASSMENT REDRESSED?

AIESEC has constituted an Internal Committee (IC) for receiving and redressing complaints related to Sexual Harassment at Workplace.

a) Constitution of the IC:

At all times, the IC shall comprise of the following:

- i) A senior level woman Employee shall be appointed as Presiding Officer of the IC (“Presiding Officer”). The Presiding Officer shall automatically vacate her office upon ceasing to be Employee of AIESEC.
- ii) Minimum two (2) members of the IC will be appointed from amongst Employees who are preferably committed to the cause of women or who have had experience in social work or have legal knowledge in this field. These members shall automatically vacate office upon ceasing to be Employee of AIESEC.
- iii) Minimum one (1) member from amongst non-governmental organizations or associations committed to the cause of women or a person familiar with the issues relating to Sexual Harassment. This member shall vacate office upon termination of contract with AIESEC.
- iv) At least one-half of the total members nominated to the IC shall be women.

All IC members are duty bound to handle all complaints without any bias or partiality towards any party. The term for the IC is a maximum of 3 years.

b) Removal of IC members:

An IC member shall be removed / replaced in the event that the IC member:

- i) breaches confidentiality
- ii) has been convicted for an offence or an inquiry into an offence under any law for the time being in force is pending against them
- iii) has been found guilty in any disciplinary proceedings or a disciplinary proceeding is pending against them
- iv) has abused their position as to render their continuance in office prejudicial to the public interest
- v) Any vacancy created in the IC due to cessation of employment, resignation, death, disability or removal, as applicable, shall be filled by a fresh nomination by AIESEC in accordance with its guidelines and in conjunction with provision of Law (where applicable).

Details of IC are given in Annexure 1.

6. WHO CAN FILE A COMPLAINT?

Anyone (including Visitor or Third Party), of any age or gender can file a complaint. The term “Complainant” shall refer to the person filing the complaint before the IC and the term “Respondent” shall refer to the person against whom the complaint of sexual harassment has been filed.

7. HOW TO FILE A COMPLAINT?

The Complainant can make a complaint of Sexual Harassment to the IC. The following need to be kept in mind:

- a) The complaint has to be in writing (either by hand or email).
- b) The Complainant should provide as many specific detail as possible including incidents, dates and people that are involved in their complaint, though should avoid making general, broad and sweeping statements. Details with respect to the following may be provided while filing a complaint:
 - i) The alleged event, matter or issue that is subject to the complaint (time/date/place etc.)
 - ii) The name and details of the Employee (Respondent) against whom the complaint is being filed
 - iii) Names and addresses of the witnesses (if any)

- iv) Details of documentary evidence (if any) such as WhatsApp chat records, SMS, E-mails, CCTV Footage, Audio / Video recording etc. and
- v) Any additional information, documentation or other evidence available to support the complaint (if any)
- c) Complaint must be made within a period of 3 (three) months from the date of incident and in case of a series of incidents, within a period of 3 (three) months from the date of last incident.
- d) The IC, at its discretion, can extend the time limit for receiving a complaint to another period of 3 (three) months if it is satisfied that the circumstances were such which prevented the Complainant from filing a complaint within the first 3 (three) months.
- e) IC will record the reasons for such extension of 3 (three) months in writing. If the complainant needs assistance in writing the complaint, they can seek help from IC. **The complaint can be submitted to the IC electronically at internalcommittee@aiesec.in.**

8. WHAT IF COMPLAINANT IS UNABLE TO MAKE A COMPLAINT?

If the Complainant is unable to make a complaint on account of their physical incapacity, a complaint may be filed, with the written consent of the Complainant by:

- a) their relative or friend; or
- b) their co-worker; or
- c) an officer of the National Commission for Women or State Women's Commission; or
- d) any person who has knowledge of the incident

If the Complainant is unable to make a complaint on account of mental incapacity, a complaint may be filed by:

- a) their relative or friend; or
- b) a special educator; or
- c) a qualified psychiatrist or psychologist; or
- d) the guardian or authority under whose care they are receiving treatment or care; or
- e) any person who has knowledge of the incident jointly with the Complainant's relative or friend or a special educator or qualified psychiatrist or psychologist, or guardian or authority under whose care they are receiving treatment or care.

If the Complainant for any other reason is unable to make a complaint, a complaint may be filed by any person who has knowledge of the incident, with their written consent. If the Complainant is deceased, a complaint may be filed by any person who has knowledge of the incident, with the written consent of their legal heir.

9. WHAT IF COMPLAINT IS AGAINST SOMEONE WHO IS NOT AN EMPLOYEE OF THE ORGANIZATION?

If any Employee/Third Party is sexually harassed by any external party who is not an Employee of AIESEC, either in AIESEC's premises or in that external party's premises, then IC shall contact either the internal committee of that external party and / or the Police (as the case maybe), on the written complaint of such Employee/Third Party to the Organization's IC and on their request that such complaint be transferred to other IC and address the matter to satisfactory closure.

Alternatively, Employee/Third Party may choose to reach out directly to IC of that external party and / or Police (as the case may be) and AIESEC will offer assistance on written request by Employee/Third Party.

10. WHAT IS THE PROCEDURE FOR HANDLING COMPLAINTS BY IC?

a) Procedure for Conciliation:

Prior to initiating an inquiry, the IC may, at the written request of the Complainant take steps to settle the matter between the Complainant and the Respondent through conciliation. The following need to be kept in mind with respect to conciliation:

- i) Monetary settlement cannot be made the basis of such conciliation.
- ii) In case a settlement has been arrived at, the IC shall record it and forward it to AIESEC to take action as specified in the recommendation of the IC.
- iii) The IC will also provide copies of the settlement as recorded to the Complainant and the Respondent.
- iv) If conciliation has been reached, the IC will not be required to conduct any further inquiry.
- v) If Complainant feels that the terms of Settlement are not being complied with by the Respondent or action has not been taken by AIESEC, Complainant can make a written complaint to the IC to conduct an inquiry into the complaint.

b) Procedure for Inquiry:

i) If the Complainant does not wish to go for conciliation or if the conciliation reached between the parties is not complied with by either Complainant or Respondent, the IC shall, upon a written request from the Complainant to do so, conduct an inquiry into the complaint. The following need to be kept in mind with respect to inquiry:

ii) On receipt of the complaint, the IC shall send copy of the complaint received from the Complainant to the Respondent within a period of 7 (seven) working days. If the complaint has been received on email, the IC member shall forward the same to the Respondent, with clear instructions that the same is not to be shared with anyone and strict confidentiality has to be maintained.

iii) The Respondent shall file the reply to the complaint along with list of documents, and names and addresses of witnesses (if any), within a period of 10 (ten) working days from the date of receipt of the documents.

iv) If the Complainant or the Respondent desires any witness/es to be called, they shall communicate in writing to IC the names of witness/es whom they propose to call.

v) If the Complainant desires to tender any documents by way of evidence before IC, they shall supply copies of such documents. Similarly, if Respondent desires to tender any documents in evidence before IC they shall supply copies of such documents. Both shall affix their signature on the respective documents to certify these to be authentic documents.

vi) The IC shall have the powers to summon and enforce the attendance of any person and conduct an examination, request the discovery and production of documents and / or any other matter which may be necessary for the inquiry process. Any refusal by any Employee of AIESEC to attend any hearing before the IC when summoned or to provide to the IC, any documents and / or information within their power or possession shall constitute as misconduct, rendering such Employee for adverse action by AIESEC.

vii) The IC shall have the right to terminate the inquiry proceedings or to give an ex-parte decision on the complaint, if the Complainant or Respondent fails, without sufficient cause, to present themselves, for 3 (three) consecutive hearings convened by the Presiding Officer. Such termination or ex-parte order may not be passed without giving a notice in writing, 15 (fifteen) days in advance, to the Complainant or Respondent as the case maybe.

viii) In conducting the inquiry, at any point of time, the complaint shall be heard by a minimum of 3 (three) members including the Presiding Officer and the External Member and IC shall complete the inquiry within reasonable period but not beyond 90 (ninety) days.

ix) IC shall notify in writing, the time and dates of its meetings to the Complainant, the Respondent and witnesses.

x) All inquiry proceedings will be documented in detail and treated as strictly confidential with restricted viewing only on need to know basis.

xi) Inquiry proceedings shall be minuted/recorded in writing. They may be audio recorded as well (where possible). The minutes/transcribed record of the proceedings and the statement of witnesses shall be endorsed by the persons concerned and IC in token of authenticity thereof.

xii) All colleagues and witnesses who are part of the IC proceedings will need to sign a confidentiality declaration.

xiii) The Complainant and Respondent shall not be allowed to bring in any legal practitioner to represent them in their case at any stage of the proceedings before the IC.

c) The things IC shall keep in mind while inquiring into a complaint:

i) The IC shall make an inquiry into the complaint in accordance with the principles of natural justice such that IC shall provide every reasonable and fair opportunity to the Complainant as well as to the Respondent, for putting forward and defending their respective side.

ii) The IC shall be sensitive to the often covert, private and insidious nature of sexual harassment and shall take into account that often the Complainant may not be able to submit or present direct or corroborative evidence.

iii) The IC shall take note of the respective socio-economic positions of the parties, their hierarchy in the Workplace, and other power differentials while giving recommendation.

iv) While inquiring into a complaint, IC shall take note that in cases of harassment via postings and messages through electronic and social media, the IC shall consider the public humiliation that this involves for the Complainant as well as the unwitting exposure of others who are using this media to circulate such messages and images.

11. CAN ANY ACTION BE TAKEN DURING PENDENCY OF INQUIRY?

During the pendency of an inquiry, on a written request made by the Complainant, the IC may recommend any of the following to AIESEC:

a) In case Complainant and/or Respondent are Employees, any one or more of the following may be recommended:

i) Grant leave to the Complainant up to a period of 3 (three) months (the leave granted shall be in addition to the leave the Complainant is otherwise entitled to)

ii) Transfer the Complainant or Respondent to any other workplace

iii) Restrain the Respondent from reporting on the work performance of the Complainant or writing their confidential report and assign the same to another Employee (if applicable)

iv) In case the complaint has been filed by an intern or an apprentice working under the Respondent, restrain the Respondent from supervising any official / academic activity of the Complainant and assign the same to another Employee.

b) In case Respondent is a Visitor / Third Party, any one or more of the following may be recommended:

If the Respondent is a Visitor / Third Party adequate steps to ensure that they do not enter AIESEC premises or contact/threaten Complainant/Witnesses shall be recommended to AIESEC by IC including reaching out to the Police if required with consent of Complainant.

12. WHAT IS AN INQUIRY REPORT AND WHAT ACTIONS CAN BE SUGGESTED UNDER IT?

On completion of inquiry, the IC shall provide a written report of its findings and recommendations to AIESEC within 10 (ten) days from date of completion of the inquiry. Such report shall also be made available to Complainant and Respondent. The inquiry report shall specify details of the allegations against the Respondent, the statements made and evidence presented by the Complainant, Respondent and / or witnesses, IC's findings along with a statement giving reasons for the findings arrived at by the IC and IC's recommendations.

a) In case allegations against Respondent have not been proven:

In the event that the IC arrives at the conclusion that the allegation against the Respondent has not been proved, it shall recommend to AIESEC that no action is required to be taken in the matter.

b) In case allegations against Respondent have been proven:

Where the IC determines that sexual harassment has taken place, to whatever extent, immediate corrective and preventive measures will be recommended. Severity of recommendation will be determined by the first time/ misunderstanding/ habitual offender etc.

i. Where Respondent is an Employee, IC may recommend any one or more of the following:

- A written apology from the Respondent
- A letter of warning may be given to the Respondent that will be placed in the personnel file
- Reprimand or censure the Respondent
- Withholding the promotion or reduction in rank
- Withholding of pay rise or increments
- Immediate transfer or suspension without pay
- Termination from service / dismissal from the services of AIESEC
- Undergoing a counselling session
- Carrying out community service
- deduction from salary or wages of the Respondent such sum as it may consider appropriate to be paid to the Complainant or to their legal heirs. In case, AIESEC is unable to make deductions from salary of the Respondent due to them being absent from duty or cessation of employment, it may direct the Respondent to pay such sum to the Complainant. In case the Respondent fails to pay the sum, the IC may forward the order for recovery of the sum as an arrear of land revenue to the concerned district officer.

IC may consider various factors as required under Law for the purpose of determining the sums to be paid to the Complainant and may take the following into consideration:

- the mental trauma, pain, suffering and emotional distress caused to the Complainant
- the loss in the career opportunity due to the incident of sexual harassment
- medical expenses incurred by the victim for physical or psychiatric treatment
- the income and financial status of the Respondent
- feasibility of such payment in lump sum or in instalments

ii. Where the Respondent is a Third Party, IC may recommend any one or more of the following:

- Warning to employing Organization/association/firm (if any)
- Declaring the Workplace/Organization out of bounds to the Respondent
- Withdrawal of the right to provide services to Organization for a certain period (if applicable)
- Helping the Complainant to file FIR, should they desire
- Debarring/blacklisting such person from AIESEC
- Other similar or appropriate punishment

Organization shall act upon the recommendation given by IC within 60 (sixty) days of receipt of the recommendation.

c) In case it is proven that the Complaint is malicious:

i) If on inquiry, it is revealed that the complaint was made with a malicious intent and with the motive of maligning the Respondent / tarnishing their image in AIESEC or otherwise and/or to settle personal / professional scores, strict action will be recommended by IC against the Complainant. Hence, in case IC arrives at a conclusion that allegation against the Respondent is malicious or Complainant has made the complaint knowing it to be false or has produced a forged or misleading document, IC may recommend to AIESEC to take an action against the Complainant the same as applicable to the Respondent if the complaint was genuine. In this regard, IC may recommend any of the actions specified above (As applicable).

ii) A mere inability to substantiate a complaint or provide adequate proof need not attract action against the Complainant as the malicious intent on the part of the Complainant will have to be established through the inquiry process before an action against such Complainant is recommended.

13. PROCEDURE FOR FILING AN APPEAL

In the event that any person is aggrieved from the recommendations made by the IC or non-implementation of such recommendations, they may appeal to the appropriate authority, as specified by law, within a period of 90 (ninety) days of the recommendations.

14. CONFIDENTIALITY

All discussions / decisions pertaining to an incident of sexual harassment must be kept confidential. Therefore, contents of the complaint made, the identity and addresses of the Complainant, Respondent and witnesses, any information relating to conciliation and inquiry proceedings, inquiry report including recommendations of the IC and action taken on the Respondent shall not be published, communicated or made known to the public, press and media in any manner. However, information may be disseminated regarding the justice secured to any victim without disclosing the name, address, identity or any other particulars calculated to lead to the identification of the Complainant and witnesses.

Appropriate information will be shared with Government authorities as per the Act. If any person (including Complainant, witnesses) breaches confidentiality, AIESEC shall recover a sum of rupees five thousand (5,000) as penalty from such person and may take any other action as it may deem fit.

15. PROTECTION AGAINST RETALIATION

There will be no retaliation against anyone who, in good faith, files a complaint or participates in any way in the inquiry of a complaint. AIESEC will not allow retaliation against that person. Individuals engaging in retaliatory conduct will be subject to strict disciplinary action and if necessary legal action and/or a police complaint. If you suspect that you or someone you know has been retaliated against for raising an issue, immediately contact the IC.

16. FILING OF COMPLAINT WITH POLICE

Nothing in these rules and procedures shall preclude anybody from simultaneously lodging a complaint with the police in respect of any act amounting to an offence under the law. AIESEC will provide assistance in this regard, if assistance is sought.

In case of a complaint of sexual harassment or any other offense against a child, as per the Protection of Children from Sexual Offences Act, 2012 ("POCSO"), or in case of offense by a child, the provisions under POCSO and Juvenile Justice (Care and Protection of Children) Act, 2015 may become applicable and would have to be dealt with in accordance with these laws. A child is any person below the age of eighteen years.

17. RESPONSIBILITIES OF EMPLOYEES

- a) Everyone has a personal responsibility to ensure that their behaviour is not contrary to this Policy.
- b) Set an example of dignified workplace behaviour and ethical standards in line with AIESEC's values and code of conduct.
- c) Create and sustain a healthy work environment.
- d) Do not ignore or allow an inappropriate behaviour to continue regardless of who is creating that situation.

- e) Support and cooperate during any inquiry of a complaint, including testifying as witness and giving full and truthful disclosure of all factual information when asked by the IC, while ensuring that complete confidentiality is maintained throughout, about any complaint of sexual harassment within AIESEC.
- f) Be aware that AIESEC will take allegations seriously and will ask their cooperation in an inquiry if they bring a complaint forward.
- g) Handle information related to known or suspected violations of this Policy in a discreet and confidential manner and not attempt to investigate / inquire into the information or suspected violations of this Policy on your own i.e. without involving the IC.
- h) Report any inappropriate behavior to IC immediately.
- i) Do not misuse the policy or the law by filing malicious complaints for settling personal scores, seeking revenge or for personal gains and benefits etc.

18. RESPONSIBILITIES OF THE IC

- a) Receive and address complaints of sexual harassment and inquire into complaints in detail
- b) Assist Complainant in filing the complaint, in case the Complainant is unable to do so.
- c) Inquiry shall be a priority for an IC member.
- d) Ensure quorum of minimum three (3) members is met during all Inquiry meetings, with mandatory presence of the Presiding officer at all inquiry meetings.
- e) Follow the principles of natural justice and treat the Complainant, Respondent, witnesses and related persons to the inquiry with dignity and respect and give both the Complainant and the Respondent a fair opportunity to make their submissions. All members of the IC shall be acting without any prejudice or bias while conducting inquiries or dealing with complaints of sexual harassment in any other manner.
- f) Make efforts to ensure that the Complainants and the witnesses are not further victimized or discriminated against while the complaint is pending.
- g) Recuse themselves from their assigned job for the purpose of conducting an Inquiry if there is conflict of interest or a bias coming in the way of conducting a fair Inquiry.
- h) Document in detail all the inquiry proceedings and the inquiry report.
- i) Refrain from talking about a potential, pending or completed case of sexual harassment to any member directly or indirectly connected to any form of media, including print, Television, online media etc.
- j) Review the status of all complaints received.
- k) Recommend action against anyone who threatens or intimidates the Complainant or members of the IC.
- l) Read and acquaint themselves with the Policy and attend trainings on this subject matter.
- m) Compile annual reports and submit to the concerned authorities.
- n) In the event, the complaint does not fall under the purview of sexual harassment or the complaint does not mean an offence of sexual harassment, forward the same to the concerned person / committee.

19. ORGANIZATION'S RESPONSIBILITIES

- a) AIESEC will not tolerate any act of sexual harassment. It shall treat sexual harassment as 'Misconduct' and take prompt, appropriate action for the same.
- b) It will organize gender-sensitization workshops and awareness programs at regular intervals covering all locations.
- c) Shall raise awareness about the prevention of sexual harassment through posters, calendars, mugs and other mediums
- d) It will ensure that necessary facilities and information are provided to the IC for dealing with the complaint and conducting an inquiry.
- e) Assist in securing the attendance of Respondent and witnesses before the IC and make available such information to the IC as it may require with regards to the complaint.
- f) Provide assistance to the IC in any manner feasible to conduct a fair and expeditious inquiry and implement recommendations made by IC.

- g) Provide assistance to the Complainant if the Complainant chooses to file a complaint in relation to the offence under the Indian Penal Code. Cause to initiate action, under the Indian Penal Code, against Respondent or if the Complainant so desires, where the respondent is not an Employee, in the workplace at which the incident of sexual harassment took place.
- h) Cause to initiate action, under the Indian Penal Code, against the Respondent, or if the Complainant so desires, where the Respondent is not an employee, in the workplace at which the incident of sexual harassment took place.
- i) Offer counselling sessions to anyone impacted by incident of sexual harassment.
- j) Do all other things it may deem fit for successful implementation of this Policy.

20. AMENDMENTS

AIESEC reserves the right to amend the Policy from time to time in order to comply with any laws / rules / regulations that come into effect from time to time, related to sexual harassment at workplace. This Policy shall be reviewed bi-annually or as and when key issues get raised to incorporate amendments. This Policy does not intend to create any contractual obligation for or with AIESEC, and in case of dispute with the Law and the Policy, the Law shall prevail.

Annexure 1

Members of the Internal Committee

<i>Name</i>	<i>Role</i>	<i>Contact</i>
Aakanksha Rathee	Presiding Officer	+91 93105 07410
Rashi Jha	Member	+91 84240 33180
Pranav Reddy M	Member	+91 91765 42266

If you are unable to make a complaint in writing for any reason, you may contact any of the members of the IC (details of whom are provided above) and they shall render assistance to you for making the complaint in writing.

You may file a complaint to IC electronically at internalcommittee@aiesec.in